IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 205
(CAA)-57/ND/2021

IN THE MATTER OF:
Thistle Equity Consultant Ltd. and Metro Technobuild Pvt. Ltd. ... **Applicant**

Under Section: 230-232

Order delivered on 11.11.2022

CORAM:
SHRI. BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (J)

SHRI. L.N. GUPTA, HON'BLE MEMBER (T)

PRESENT:

For the Applicant	:	Dr. U.K. Chaudhary, Sr. Adv, Palash Aggarwal and Mansumyer Singh, Advs.
For the IT Dept.	:	Mr. Abhishek Maratha, Mr. Pratyaksh Gupta
For the OL	:	Ms. Hemlata Rawat
For the RD	:	Adv. Priyadarshini Dewan

ORDER

Ld. Counsel, Ms. Priyadarshini Dewan appearing for the RD submits that the report of RD Report has clearly stated that:

> *"These matters as stated above have material impact upon the national ex-chequer, also there may be money trail involved in the conduit and also may this rotation of money fall under the ambit of money laundering involving these companies and person behind the concert.*
>
> *In view of the above it is prayed before the Hon'ble Tribunal to issue direction to the Enforcement Directorate or any other Authority for examination of these issues in detail and for unearthing the reality of the transactions, since examination of Money Laundering activities falls under the jurisdiction of the Enforcement Directorate".*

The RD has prayed that this Tribunal may issue directions to the Enforcement Directorate (ED) or any other Authority for examination of the issues in detail. At this stage, Ld. Sr Counsel appearing for the Applicant Companies submits that he would like to argue on the matter of issuing notice to the ED or any authorities basing on observations made by the RD (ND).

In the meantime, the Applicants as well as RD (ND) are directed to share the copy of the RD's report with the concerned Income Tax Authority for filing their comments on the observations made by the RD within two weeks.

List the matter on 06.12.2022.

Sd-

(L.N. GUPTA)
MEMBER (T)

Sd-

(BACHU VENKAT BALARAM DAS)
MEMBER (J)

Ashwani